



Rule 2.86—Form 3: Application to Expunge Public Intoxication Court Records under Iowa Code section 123.46

If you do not understand how to use this form, or if you are unsure whether you should use this form, talk to an attorney.

In the Iowa District Court for Johnson **County**

County where you are filing this Application

State of Iowa or _____

vs.

Alexandra Catherine Montgomery-Example
Defendant

Case no. EXAMPLE-INT-BOUNDARY

**Application to Expunge Public
Intoxication Court Records under Iowa
Code section 123.46**

If you need assistance to participate in court due to a disability, call the disability coordinator (information at www.iowacourts.gov/for-the-public/ada). Persons who are hearing or speech impaired may call Relay Iowa TTY (1-800-735-2942). **Disability coordinators cannot provide legal advice.**

Defendant respectfully applies to the court for an order expunging the court records in the above-captioned case pursuant to Iowa Code section 123.46(6). In support of this application, Defendant acknowledges that the following statements are true and correct to the best of Defendant's knowledge:

Read, complete, and check each item if you agree.

1. ☒ Defendant was convicted for a violation of Iowa Code section 123.46, consumption or intoxication in public places, or of a similar local ordinance on: September 7, 2024
Month Day Year
2. ☒ Defendant has had no criminal convictions other than local traffic violations or simple misdemeanor violations under Iowa Code chapter 321 during the two-year period following the conviction.

Read Before Signing

Please check each statement below after you have read it.

- ☒ **I understand** that I must provide a copy of this application to the county attorney.
- ☒ **I understand** that the records in a criminal case expunged under this section are confidential and exempt from public access under Iowa Code section 22.7. The record shall not be accessible except by court order.

Continue to next page



Signature

Check one

A. ☐ Defendant is self-represented.

If you check **A**, you must fill in the following information:

I, Alexandra Catherine Montgomery-Example, have read this Application, and I certify

Print your full name: first, middle, last

under penalty of perjury and pursuant to the laws of the State of Iowa that the information I have provided in this Application is true and correct.

_____, 20____
*Month Day Year Self-represented defendant's signature**

9999 Example Heritage Boulevard, Apartment 1234

Mailing address

University Heights, IA 52246-1234

City State ZIP code

(319) 555-0101 alexandra.montgomery.example@example.org

Phone number Email address

**This form may be signed either by using a digitized signature, see instructions at <https://www.iowacourts.gov/for-the-public/court-forms/>, or by printing and hand-signing.*

B. ☐ Defendant's attorney is filing this Application on behalf of Defendant after discussing the contents of this Application with Defendant.

If you check **B**, you must fill in the following information:

_____, 20____
Month Day Year Attorney's signature

Name of law firm, if applicable

Mailing address

_____, _____, _____
City State ZIP code

(_____) _____
Phone number

_____, _____
Email address Additional email address, if applicable

Certification of Service by Mailing or Delivery

If you cannot find your case on the Iowa Judicial Branch eFile System, proceed with filing your application in paper at the county clerk of court office. You must fill out the below and mail or hand deliver a copy of this application to the county attorney of the county in which you are filing this application.

I, _____, certify that on _____, 20____,
Print your full name: first, middle, last Month Day Year

I mailed or gave a copy of this Application to the county attorney at this address:

Name of person to whom I delivered or mailed it

_____, _____, _____
Mailing address City State ZIP code

Iowa public intoxication: next steps

Alexandra Catherine Montgomery-Example | Johnson County | EXAMPLE-INT-BOUNDARY

1. This packet and the correct route

For Alexandra Catherine Montgomery-Example, Johnson County, existing case EXAMPLE-INT-BOUNDARY. The first two pages are official August 2024 Rule 2.86 Form 3; page 2 includes the paper-service certification. These instructions are not filed. No proposed order, notarization, DCI request, billing form or returned history report is required in this packet.

This is the public consumption/intoxication conviction route, not a dismissal, deferred judgment or general misdemeanor application. Your supplied offense is 123.46(2). Verify the existing case and original caption.

SYNTHETIC EXAMPLE - DO NOT FILE. All participant names, identifiers, case facts and Example ordinance labels are fictional test inputs, not real court records.

2. Check the dates and intervening convictions

Conviction: 2024-09-07. Two-year anniversary: 2026-09-07. Intended filing: 2026-09-07. The clock starts at conviction, not sentence completion. Recheck the facts on the actual filing date.

The two-year period following conviction must contain no other criminal conviction except a local traffic violation or a simple misdemeanor under chapter 321. Not all driving offenses are exceptions: an OWI or chapter 321J charge is not automatically exempt. A later conviction outside the fixed two-year window does not restart this particular clock.

You reported no subsequent convictions. The checked statement comes from your explicit confirmation, not a record search.

Stop for legal assistance if the history is incomplete, a conviction or its category is disputed, or a conviction occurred on a timing boundary that requires a legal determination.

3. Review, complete and sign

Item 1 is checked only from your express conviction confirmation. Verify its date and ground; untrue or uncertain declarations must be corrected before signing.

Review every checked statement and acknowledgment. Check representation election A on page 2, enter the actual signing date and sign under penalty of perjury. The printed name is not a signature. Leave attorney block B blank. Use a permitted digitized signature or print and hand-sign as the source directs. No notary block is added.

Your supplied contact details are entered. Update any changed details before filing. The signature/date and actual service remain real later acts.

4. File in the existing case and provide notice

File this application in the existing Johnson County district-court case, not a new case in your county of residence. Keep a copy. The Johnson County Clerk of Court is at 417 South Clinton Street, Iowa City, IA 52240; telephone 319-356-6060. Confirm current filing arrangements before visiting or mailing.

Electronic filing selected. Locate the existing case in the Iowa eFile System, submit the signed application and verify acceptance and county-attorney electronic service. The paper-service certificate remains unused. An upload alone does not prove acceptance or service.

Resolve unsuccessful electronic service with the clerk or legal assistance. Do not falsely complete a paper-service certificate.

Under Rule 2.83, the county attorney generally has 20 days after service to respond unless the court orders otherwise. A hearing may be set. Follow all notices; silence is not an expungement order. Opposition or a contested hearing is a self-help stopping point.

Iowa public intoxication: next steps

Alexandra Catherine Montgomery-Example | Johnson County | EXAMPLE-INT-BOUNDARY

5. Costs and effect of a court order

Payment of court debt is not a precondition on this route under Rule 2.83(3). You reported court debt as unknown. This application does not forgive debt or convert unpaid amounts into paid amounts.

University of Iowa Student Legal Services states there is no filing fee for an expungement request. Confirm case-specific charges with the clerk. Postage/copies may cost money. No application-fee election or invented fee-waiver form is included.

Using this separate alcohol route does not use the once-per-lifetime section 901C.3 misdemeanor expungement. The court decides the application. Keep the signed order and verify that the clerk has made the court record confidential; it is not destroyed and court-authorized access remains possible.

Section 123.46(6) directs DPS to remove the conviction from its criminal-history data, if maintained there, after clerk notice of the expungement. An application alone does not do that. Check the order and clerk notice; no promise is made about every police or private background-check database.

Seek an attorney or legal aid for opposition, contested factual issues, an incorrect remedy, immigration consequences or another problem outside this self-help application. Do not miss a court deadline while seeking help.

Sources and official assistance

Iowa Code 123.46(6) (2026); Rule 2.86 Form 3 August 2024; Iowa Rules 2.82, 2.83 and 2.84. Read your official form and court notices. These instructions do not replace legal advice.

<https://www.iowacourts.gov/browse/files/8a0a8591f13f4c068f8502b0d8d32ebb/download>

<https://www.legis.iowa.gov/docs/code/2026/123.46.pdf>

<https://www.iowacourts.gov/efile>

<https://studentlegal.uiowa.edu/know-the-law/criminal-law/expungement>